

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. _____

KIMBERLY N. SQUIRES, by and through her Guardian
and Natural Parent, LYLE K. SQUIRES,

Plaintiff,

v.

JAMES MICHAEL GOODWIN, an individual, and
BRECKENRIDGE OUTDOOR EDUCATION CENTER, a Colorado corporation,

Defendants.

COMPLAINT AND JURY DEMAND

COMES NOW the Plaintiff, Kimberly N. Squires, by and through her Guardian and natural parent, Lyle K. Squires, and by and through her attorneys, THE GOLD LAW FIRM, L.L.C., and for her Complaint against Defendant James Michael Goodwin and Defendant Breckenridge Outdoor Education Center, and each of them, states as follows:

1. This is an action brought by Plaintiff Kimberly N. Squires, by and through her Guardian and natural Parent, Lyle K. Squires, to recover damages and other associated losses for personal injuries suffered as a first-time skier while skiing at Breckenridge Ski Resort in Summit County, Colorado.
2. Pursuant to 28 U.S.C.A. § 1332, district court jurisdiction is appropriate in this action as there is complete diversity of citizenship between the parties.

3. At all times relevant hereto, Plaintiff Kimberly N. Squires was a minor child residing in the State of Kansas with various medical conditions including moderate developmental delay, legal blindness and cerebral palsy.

4. At all times relevant hereto, Defendant James Michael Goodwin was an adult, residing in the State of Missouri, and skiing at Breckenridge Ski Area in Summit County, Colorado and was considered a “skier” as that term is defined by the Colorado Ski Safety Act. C.R.S. § 33-44-103(8).

5. At all relevant times hereto, Defendant Breckenridge Outdoor Education Center (BOEC) was a Colorado Corporation which was incorporated to provide outdoor experiences for people with disabilities, including Plaintiff.

6. At all times relevant hereto, Defendant BOEC employed ski instructor Jennifer “Iggy” Phillips, and under the doctrine of *respondeat superior*, BOEC is liable for the actions of its employee.

7. On or about February 13, 2008, Plaintiff Kimberly N. Squires went skiing for the first time in her life and was skiing under the control and supervision of BOEC employee and ski instructor Jennifer “Iggy” Phillips, who had placed Ms. Squires on a bi-ski and accompanied her down *Cashier* trail at the Breckenridge Ski Resort.

8. As they descended down *Cashier* trail, upon information and belief, Plaintiff Squires and/or Defendant BOEC employee Jennifer Phillips was struck by Defendant Goodwin who was likewise skiing down *Cashier* trail.

9. The collision involving Defendant Goodwin caused Defendant BOEC employee

Phillips to lose control of the bi-ski on which she had placed Plaintiff, the bi-ski continued down *Cashier* trail in excess of 400 yards before the ski and Ms. Squires struck a tree, causing her to suffer severe and permanent injuries.

FIRST CLAIM FOR RELIEF

Defendant Goodwin

Negligence *Per Se*: Primary duty as the uphill or overtaking skier to avoid the collision

C.R.S. § 33-44-109(2)

10. Defendant Goodwin had the primary duty, as the uphill and overtaking skier, to avoid colliding into the Plaintiff pursuant to C.R.S. § 33-44-109(2).

11. Defendant Goodwin breached this primary duty by overtaking and colliding into the Plaintiff from uphill.

12. As set forth below, Plaintiff suffered severe injuries as a result of the Defendant Goodwin's negligence and negligence *per se*.

SECOND CLAIM FOR RELIEF

Defendant Goodwin

Negligence *Per Se*: Duty to refrain from acting in a manner which causes injury to other skiers

C.R.S. § 33-44-109(5)

13. Defendant Goodwin had a duty to refrain from acting in a manner which causes injury to other skiers pursuant to C.R.S. § 33-44-109(5).

14. Defendant Goodwin breached this duty to the Plaintiff by colliding into the Plaintiff from uphill.

15. As set forth below, Plaintiff suffered severe injuries as a result of the Defendant's negligence and negligence *per se*.

THIRD CLAIM FOR RELIEF

Defendant Goodwin

**Negligence *Per Se*: Duty to maintain control of speed and course
and duty to maintain a proper lookout
C.R.S. § 33-44-109(2)**

16. Pursuant to C.R.S. § 33-44-109(2), Defendant Goodwin had a duty to maintain control of his speed and course at all times when skiing and to maintain a proper lookout so as to be able to avoid other skiers and/or objects.

17. Defendant Goodwin breached this duty to the Plaintiff by colliding into the Plaintiff and/or her BOEC instructor from uphill.

18. As set forth below, Plaintiff suffered severe injuries as a result of the Defendant's negligence and negligence *per se*.

FOURTH CLAIM FOR RELIEF

Defendant Goodwin

Negligence: Common law duty to exercise reasonable care

19. Defendant Goodwin had a common law duty to exercise reasonable care while skiing to avoid foreseeable injury to other participants.

20. Defendant Goodwin breached this common law duty to the Plaintiff by colliding into the Plaintiff from uphill.

21. As set forth below, the Plaintiff suffered severe injuries as a result of the Defendant Goodwin's negligence.

FIFTH CLAIM FOR RELIEF

Defendant BOEC

**Negligence: Willful and Wanton, Reckless, and/or Grossly Negligent
Conduct**

22. Defendant BOEC had a duty to exercise due care while providing instruction, supervision, and equipment to Plaintiff Squires, and to avoid all conduct which is heedless, reckless, and/or without regard to the consequences and without regard to the rights and safety of others, particularly Plaintiff Squires.

23. Defendant BOEC created a higher-than-normal risk of harm to Plaintiff Squires by committing acts including but not limited to the following:

- a. Failing to select and provide appropriate equipment to Plaintiff Squires;
- b. Failing to select appropriate means of connecting Plaintiff's bi-ski to instructor Phillips;
- c. Failing to select appropriate terrain for Plaintiff, a first-time skier with disabilities;
- d. Failing to provide adequate blocking of uphill skiers;
- e. Failing to maintain control of Plaintiff's bi-ski;
- f. Failing to retain the tether or rope connected to Plaintiff's bi-ski;
- g. Failing to prevent the collision which occurred as a result of allowing Plaintiff's bi-ski to separate from the instructor's control;
- h. Failing to provide Plaintiff with appropriate instructions and safety precautions;
- i. Failing to select appropriate circumstances for a first-time skier with disabilities.

24. Defendant BOEC was aware of the risks to which it was exposing Plaintiff Squires,

a minor and disabled skier.

25. Defendant BOEC failed to exercise due care while providing instruction, supervision, and equipment to Plaintiff Squires, and failed to avoid conduct which is heedless, reckless, and/or without regard to the consequences and without regard to the rights and safety of others, particularly Plaintiff Squires.

26. Defendant BOEC's actions were conducted heedlessly, and without justification, and in disregard of the rights of others, particularly Plaintiff Squires.

27. As set forth below, the Plaintiff suffered severe injuries as a result of Defendant BOEC's negligent conduct.

DAMAGES

28. As a result of the negligence of Defendant Goodwin and Defendant BOEC, and each of them, Plaintiff Kimberly N. Squires suffered severe injuries in the collision, including traumatic brain injury and multiple fractures. Plaintiff Squires was initially treated in Breckenridge; she was then transported to Swedish Hospital in Denver, where she underwent emergency orthopedic surgeries. She remained in the hospital for over one month, and has required multiple subsequent surgeries, physical therapy, rehabilitation, and medical care.

29. Plaintiff has suffered past and future economic losses for medical expenses in excess of \$700,000.00 including: emergency room services, ambulance services, hospital charges, physician services, surgical costs, nursing charges, transportation expenses, costs for assistive living devices, and rehabilitation expenses.

30. Additionally, Plaintiff has and will incur loss of past, present and future earnings, and impairment of future earning capacity. She has suffered non-economic losses for permanent impairment and disfigurement, risk for future medical complications associated with these injuries, loss of enjoyment of life, and pain, suffering and anxiety.

WHEREFORE, Plaintiff prays for damages against Defendant Goodwin and Defendant BOEC, and each of them, in an amount to be determined at trial, interest from the date of the injury, costs and expenses of suit, attorneys' fees, if appropriate, and such other relief as the Court deems proper.

PLAINTIFF DEMANDS A TRIAL BY JURY

Dated this 12th day of February, 2010.

/s/ Colleen Parsley
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